

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 730, As Amended in the Senate

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO THE SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM; AMENDING CHAPTER 2, TITLE 56, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 56-205A, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM INTEGRITY MEASURES; AMENDING SECTION 56-211, IDAHO CODE, TO REVISE PROVISIONS REGARDING VERIFICATION FOR THE SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 2, Title 56, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 56-205A, Idaho Code, and to read as follows:

56-205A. SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM INTEGRITY MEASURES. (1) The department of health and welfare shall enter into a data-matching agreement with the Idaho state lottery commission to identify households with lottery winnings of three thousand dollars (\$3,000) or more and, to the extent permissible under federal law, shall treat this data as verified upon receipt. To the extent that the data may not be verified upon receipt, the department shall make referrals for further investigation to identify households with winnings equal to or greater than the resource limit for elderly or disabled households as defined in 7 U.S.C. 2014(g) (1). The department shall promptly disenroll from the supplemental nutrition assistance program (SNAP) any household with winnings equal to or greater than the resource limit for elderly or disabled households.

(2) On at least a monthly basis, the department of health and welfare shall:

(a) Review information from the bureau of vital records and health statistics concerning individuals in households enrolled in SNAP that indicates a change in circumstances that may affect eligibility for SNAP, including but not limited to death records;

(b) Receive and review information concerning individuals in households enrolled in SNAP that indicates a change in circumstances that may affect eligibility for SNAP, including but not limited to potential changes in residency as identified by out-of-state electronic benefit transfer transactions;

(c) Receive and review information from the state department of correction concerning individuals in households enrolled in SNAP that indicates a change in circumstances that may affect eligibility for SNAP, including but not limited to incarceration status; and

(d) To assess continued eligibility and act on findings, review and act on the following data from federal sources:

(i) Earned income information, death register information, incarceration records, supplemental security income information, beneficiary records, earnings information, and pension information maintained by the United States social security administration;

(ii) Income and employment information maintained in the national directory of new hires database and child support enforcement data maintained by the United States department of health and human services;

(iii) Payment and earnings information maintained by the United States department of housing and urban development;

(iv) National fleeing felon information maintained by the federal bureau of investigation; and

(v) Address change information maintained in the United States postal service national change of address database.

(3) On at least a quarterly basis, the department of health and welfare shall:

(a) Receive and review information from the department of labor concerning individuals in households enrolled in SNAP that indicates a change in circumstances that may affect eligibility for SNAP, including but not limited to changes in employment or wages; and

(b) Receive and review information from the state tax commission concerning individuals in households enrolled in SNAP that indicates a change in circumstances that may affect eligibility for SNAP, including but not limited to potential changes in income, wages, or residency as identified by tax records.

(4) On at least a biannual basis, the department of health and welfare shall make available to the public on its website data from findings of non-compliance and fraud investigations in SNAP for the following aggregate, nonconfidential, and non-personally identifying information:

(a) The number of households investigated for intentional program violations or fraud;

(b) The total number of households referred for prosecution to the attorney general's office and United States attorney's office;

(c) Improper payments and expenditures;

(d) Moneys recovered;

(e) Aggregate data concerning improper payments and ineligible recipients as a percentage of those investigated and reviewed; and

(f) The aggregate amount of funds expended by electronic benefit transfer card transactions in each state outside of Idaho.

(5) If the department of health and welfare receives information concerning an individual receiving SNAP benefits that indicates a change in circumstances that may affect eligibility for SNAP, the department shall review the household's case.

(6) In no case shall categorical eligibility under 7 U.S.C. 2014(a) or 7 CFR 273.2(j) (2) (ii) be granted for any noncash, in-kind, or other benefit, unless expressly required by federal law for SNAP.

(7) The department of health and welfare shall not apply gross income standards for SNAP higher than the standards specified in 7 U.S.C. 2014(c) or allowable financial resources higher than the standards specified in 7

U.S.C. 2014(g)(1), other than financial resources described in 7 U.S.C. 2014(g)(2)(D), unless expressly required by federal law. Exempting households from such gross income standards or allowable financial resource standards shall not be granted, unless expressly required by federal law.

(8) The department of health and welfare may apply alternate vehicle allowance standards authorized by 7 U.S.C. 2014(g)(2)(D).

(9) The department of health and welfare shall assign certification periods no greater than six (6) months to households with zero (0) net income, households that include an able-bodied adult without dependents, and other households whose circumstances are determined by the department to be unstable, unless otherwise prohibited by federal law.

(10) The department of health and welfare shall assign certification periods of one (1) to two (2) months to households that the department determined will become ineligible for SNAP in the near future, unless otherwise prohibited under federal law.

SECTION 2. That Section 56-211, Idaho Code, be, and the same is hereby amended to read as follows:

56-211. APPLICATION FOR PUBLIC ASSISTANCE -- VERIFICATION FOR ~~FEDERAL FOOD STAMP~~ SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM. (1) Application for public assistance under this ~~act~~ section shall be made in the manner and form prescribed by the state department and the application shall contain such information bearing on the applicant's eligibility as the state department may require and as required in ~~subsection (2) of this section~~.

(2) Applicants seeking benefits under the ~~federal food stamp supplemental nutrition assistance program~~ (SNAP) shall verify to the state department the identity of each household member the applicant lists on the application for such benefits. Identification may be verified either through readily available documentary evidence, such as a birth certificate, or through a collateral contact as set forth in federal law, 7 CFR 273.2. Upon a showing of good cause by the applicant as to why such documentary evidence or collateral contact has not been provided, the state department shall grant an extension and the applicant may receive the public assistance for which he or she has applied for one (1) month. A showing of good cause shall be required each month the applicant fails to provide the state department with the required documentary evidence or collateral contact. Good cause is not shown where a delay in providing documentary evidence or providing a collateral contact is due to illness, lack of transportation or temporary absences. The provisions of this subsection shall not apply to applicants who provide, or who have previously provided, a document as set forth in section 67-7903(4)(b)(viii) or (ix), Idaho Code.

(3) Pursuant to 7 U.S.C. 2015(f), no individual shall be eligible to receive SNAP benefits unless the individual is a resident of the United States and is:

(a) A citizen or national of the United States;

(b) An alien lawfully admitted for permanent residence as an immigrant, as defined in 8 U.S.C. 1101(a)(15) or 1101(a)(20), excluding alien visitors, tourists, diplomats, students, or other individuals admitted temporarily without intent to abandon their residence in a foreign country;

(c) An alien who has been granted the status of Cuban or Haitian entrant, as defined in section 501(e), P.L. 96-422; or

(d) An individual lawfully residing in the United States in accordance with a compact of free association pursuant to 8 U.S.C. 1612(b)(2)(G).

(4) The department shall verify the eligibility for SNAP of applicants and enrollees pursuant to subsection (3) of this section as follows:

(a) If an individual is not a citizen or national of the United States but is eligible to receive SNAP benefits pursuant to subsection (3) of this section, the department shall be required to verify eligible alien status using the systematic alien verification for entitlements (SAVE) program during enrollment and each eligibility recertification. If SAVE verification is unsuccessful, the individual shall submit acceptable documentation to verify eligible alien status, including but not limited to a permanent resident card, an employment authorization document, or other official documentation issued by a federal government agency, as determined by the department.

(b) If an individual is a citizen or national of the United States for the purposes of eligibility pursuant to subsection (3) of this section, the department shall verify such citizenship or nationality during enrollment using secure and verifiable documentation, including but not limited to a certified birth certificate, a United States passport, a certificate of naturalization, a certificate of citizenship, or a consular report of birth abroad. Verification at recertification shall be required only if the department has reason to question the individual's previously verified citizenship or nationality.

(5) If verification confirms that an applicant or enrollee for SNAP is not lawfully present in the United States or no longer qualifies pursuant to this section or any successor provision of state or federal law, the department shall immediately terminate future SNAP benefits and initiate disenrollment.

(6) The department shall submit to the United States department of agriculture information concerning any household member for whom it is unable to verify eligible citizenship or ineligible alien status pursuant to 7 U.S.C. 2015(f) and this section, regardless of whether such household member is applying to participate in the program as a member of such household.

(7) When administering SNAP, the department shall:

(a) Consider the entire income and financial resources of any individual rendered ineligible for participation in SNAP pursuant to 7 U.S.C. 2015(f) and subsection (3) of this section when determining the eligibility and benefit allotment of the household of which such individual is a member; and

(b) Notwithstanding any options provided pursuant to 7 CFR 273.11(c)(3), not prorate or exclude the income or financial resources of ineligible aliens pursuant to 7 U.S.C. 2015(f) and subsection (3) of this section. All such income and resources shall be fully considered.

~~(3)~~ (8) The state department may promulgate rules, subject to legislative approval, to implement the provisions of this section.

SECTION 3. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.